

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

September 3, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
2	24-01431292 Arroyo vs. Swift Debt Relief, Inc.	1) Motion to Be Relieved as Counsel of Record 2) Motion to Be Relieved as Counsel of Record 3) Motion to Be Relieved as Counsel of Record MOTION NO. 1: The motion of attorney James D. McNairy from Boutin Jones Inc. to be relieved as counsel of record for defendant Jason DeAngelo is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 2: The motion of attorney James D. McNairy from Boutin Jones Inc. to be relieved as counsel of record for defendant Marc Photoglou is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order. MOTION NO. 3: The motion of attorney James D. McNairy from Boutin Jones Inc. to be relieved as counsel of record for defendant Swift Debt Relief Inc. is GRANTED. Moving attorney has shown compliance with all the requirements of the California Rules of Court, Rule 3.1362. Moving attorney is ORDERED to give notice to client, and file proof of service of the Court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
3	26-01572306 Calvillo Martinez vs. THE IRVINE COMPANY LLC	Motion to Compel Arbitration Defendant The Irvine Company LLC's Motion to Compel Arbitration is GRANTED. Defendant contends Plaintiffs' claims are subject to arbitration pursuant to an addendum to a lease agreement which contained an arbitration clause.

Service on Plaintiffs

Self-represented parties are to be served by non-electronic methods unless they affirmatively consent to electronic service.

(Cal. Rules of Court, rules 2.251, subd. (c)(3)(B); 2.253, subd. (b)(3).) Defendant's proof of service reflects the motion and reply were served by electronic service. As Plaintiffs do not object to service and served a timely opposition, the Court considers the merits of the motion but reminds counsel of the requirement to serve self-represented parties by non-electronic methods absent affirmative consent to electronic service.

Legal standard

The Federal Arbitration Act (FAA) authorizes enforcement of arbitration causes unless grounds exist in law or equity for the revocation of any contract. (9 U.S.C. § 2.) Similarly, under the California Arbitration Act (CAA), a party to an arbitration may move to compel arbitration if the other contractual party refuses to arbitrate. (Code Civ. Proc., § 1281.2.)

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable."

(*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413). "[T]he petitioner bears the burden of proving its existence by a preponderance of the evidence" and the party opposing the petition bears the burden of proving by a preponderance of the evidence of any fact necessary to the defense. (*Ibid.*)

Analysis

The subject arbitration agreement

On or about 5/21/25, plaintiff Claudia Vernoica Calvillo Martinez entered into a one-month lease agreement with Defendants for a term of 8/1/25 to 8/31/25, which included an Addendum for Arbitration of Disputes and Class Action Waiver (Agreement). (Tehrani Decl., ¶ 3, Ex. 1.) After this term, the tenancy continued on a month-to-month basis, renewing each month on the same terms and conditions of the Lease, including the Arbitration Addendum. (Tehrani Decl. at ¶¶ 3, 4 Ex. 1.)

Kamal Alexander Benitez and Renata Monteverde are Plaintiff's children and all three are listed as occupants in the Lease. (Tehrani Decl., Ex. 1.)

Section 1 of the Agreement states, in part:

Any dispute, claim or controversy arising out of or relating to this Lease, your tenancy, including but not limited to, the breach, enforcement, interpretation or validity thereof, or the

Premises (including the Common Area & Amenities), and including the determination of the scope or applicability of this provision to arbitrate (“Claim” or “Claims”) shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator. (Tehranian Decl., Ex. 1 at § 1.)

The Agreement further provides:

arbitration shall be the exclusive and binding remedy for any Claims between the Parties (including claims by Resident or Resident’s Related Parties (as defined below) against Landlord and Landlord’s Related Parties (as defined below), and claims by Landlord and Landlord’s Related Parties against Resident or Resident’s related Parties) and shall be used instead of any court action or jury trial, which are hereby expressly waived.

Whether the Federal Arbitration Act (FAA) applies

Defendant contends that while Civil Code section 1953, subdivision (a)(4) provides “[a]ny provision of a lease or rental agreement of a dwelling by which the lessee agrees to modify or waive” “[h]is procedural rights in litigation in any action involving his rights and obligations as a tenant” “shall be void as contrary to public policy,” this statute is preempted by the FAA, which applies to the Agreement.

The party asserting the FAA applies to an arbitration agreement bears the burden of demonstrating FAA coverage. (*Tuufuli v. West Coast Dental Administrative Services, LLC* (2026) 117 Cal.App.5th 1048, 1054 [citation omitted].) Parties may voluntarily agree to have the FAA govern enforcement of an arbitration agreement. (*Ibid.* [citation omitted].)

Defendant contends the Agreement expressly elects to have the FAA govern. Specifically, the Agreement provides, “Except as otherwise provided in this Addendum, and notwithstanding any other choice of law provision, the Federal Arbitration Act, 9 U.S.C. Sections 1-16, including its substantive and procedural provisions, shall govern the interpretation, enforcement, and all proceedings pursuant to or arising out of the Lease and/or this Addendum,” (Tehranian Decl., Ex. 1 at § 1.)

As Plaintiffs do not dispute the application of the FAA, the Court finds the FAA applies to the Agreement.

Whether an agreement to arbitrate exists

When a party petitions the court to compel arbitration, it “must allege the existence of an agreement to arbitrate the controversy (§ 1281.2); facts necessary for a determination of its enforceability are proven by affidavits or declarations.” (*Condee v. Longwood Management Corp.*

(2001) 88 Cal.App.4th 215, 218 [citation omitted].) The relevant provisions of the arbitration agreement must be set forth verbatim in the petition to compel or a copy of the agreement must be attached to the petition and incorporated by reference. (*Ibid.* [citing Cal. Rules of Court, rule 371 [now rule 3.1330].])

“If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165 [disagreed with by *Ramirez v. Golden Queen Mining Co., LLC* (2024) 102 Cal.App.5th 821, on a different point.])

Defendant attached a copy of the Agreement as Exhibit 1 to the Tehranian Declaration. Plaintiffs do not dispute the existence of the Agreement. Instead, Plaintiffs argue “Defendants have not established that every Plaintiff is legally bound by the Arbitration Addendum, particularly Kamal Alexander Benitez and Renata Monteverde, who never signed the Lease or the Arbitration Addendum.” (Opp. at 4:13-15.)

As set forth above, the Agreement provides it also applies to claims not only by the Resident but the Resident’s Related Parties, which is defined as the “Resident, Resident’s Occupants, Household Members, and any others under Resident’s control.” (Tehranian Decl., Ex. 1 at § 1.) The Agreement provides: “Only Resident and the following people are permitted to live in the Premises: Claudia Calvillo Martinez, Renata Monteverde, Kamal Benitez (the ‘Occupants’).” (Tehranian Decl., Ex. 1 at § 1.) The Agreement also defines Household Members as “Resident, Resident’s Occupants, any individual residing in the Premises.” (Tehranian Decl., Ex. 1 at § 1.) Plaintiffs do not dispute Benitez and Monteverde are Martinez’s children or that they are Occupants and/or Household Members as defined by the Agreement.

Additionally, “[u]nder the third party beneficiary theory, a nonsignatory may be compelled to arbitrate where the nonsignatory is a third party beneficiary of the contract.” (*Philadelphia Indemnity Ins. Co. v. SMG Holdings, Inc.* (2019) 44 Cal.App.5th 834, 841 [citation omitted].) “Whether a nonsignatory is an intended third party beneficiary to the contract is determined from the parties’ intent, as gleaned from the contract as a whole and the circumstances under which it arose.” (*Ibid.* [citation omitted].)

In the same paragraph addressing arbitration of disputes, the Agreement provides, “Resident and Landlord acknowledge and agree that Resident’s Related Parties and Landlord’s Related Parties are third party beneficiaries of the Lease, and that it is equitable to extend the reciprocal benefits and obligations of this agreement to them.” (Tehranian Decl., Ex. 1 at § 1.) As discussed above, Plaintiffs do not dispute Benitez and Monteverde are Resident’s Related Parties, nor do Plaintiffs dispute they are third party beneficiaries under the Agreement.

		The Court finds an agreement to arbitrate exists. <u>Whether the Agreement covers Plaintiffs’ claims</u> The Agreement provides it applies to “[a]ny dispute, claim or controversy arising out of or relating to this Lease.” (Tehranian Decl., Ex. 1 at § 1.) The party opposing arbitration “bears the burden to show the arbitration provision cannot be interpreted to cover the claims in the complaint.” (<i>Howard v. Goldbloom</i> (2018) 30 Cal.App.5th 659, 663.) Plaintiffs do not dispute the Agreement covers their claims which relate to alleged habitability issues of the leased property. The Court finds the Agreement covers Plaintiffs’ claims. <u>Enforceability of the Agreement</u> Once the court determines whether an agreement exists, it must then determine whether it is enforceable if any defense to its enforcement is raised. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413.) Plaintiffs have not raised any defenses as to enforceability of the Agreement. Accordingly, the Court GRANTS Defendant The Irvine Company LLC’s motion to compel arbitration. This action is stayed pending the outcome of arbitration.
5	23-01365328 <i>Almaraz-Ramirez vs. Walmart Inc.</i>	1) Motion for Protective Order 2) Motion to Compel Deposition (Oral or Written) 3) Motion to Compel Further Responses to Special Interrogatories <u>Motion for Protective Order</u> Defendant Walmart, Inc.’s Motion for Protective Order is GRANTED in part and DENIED in part. Defendant is ORDERED to produce Grisel “Grey” Granados for a remote deposition which shall be limited to 1.5 hours. The deposition shall take place within 60 days of this order. The parties are ORDERED to meet and confer within 10 days of this order to select a date for the deposition. Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or

conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).)

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420(b).)

“If the motion for a protective order is denied in whole or in part, the court may order that the deponent provide or permit the discovery against which protection was sought on those terms and conditions that are just.” (Code Civ. Proc., § 2025.420(g).)

The Court finds good cause to limit Plaintiff’s deposition of Granados to no more than 1.5 hours and to be conducted by remote means. After review of the doctor’s note submitted in support of the Motion, it is not apparent Granados’s medical condition would prohibit her from any participation in discovery. Accordingly, the Court finds the limitations above sufficient to protect Granados.

Motion to Compel Deposition

Plaintiff Alicia Almaraz-Ramirez’s Motion to Compel Grey Granados’s Attendance at Deposition is GRANTED with the restrictions ordered above.

The Court finds Defendant acted with substantial justification in opposing the Motion, thus, sanctions are DENIED.

Motion to Compel Further Responses

Plaintiff Alicia Almaraz-Ramirez’s Motion to Compel Further Responses to Special Interrogatories, set four, is CONTINUED to [REDACTED].

The Court finds the parties’ meet and confer efforts to be insufficient. “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 20216.040(a).) A letter is not an approved meet and confer method.

The parties are ORDERED to meet and confer in good faith in an attempt to resolve the outstanding discovery issues **in person, by telephone, or by videoconference** within 15 days of this order. If Defendant agrees to serve supplemental responses, Defendant shall serve supplemental verified responses and produce additional documents no later than 20 court days prior to the continued hearing date. The parties must file a joint statement not to exceed 5 pages addressing the parties’ meet and confer efforts no later than 15 court days before the hearing. Plaintiff may file

		and serve a supplemental memorandum of remaining issues, no later than 9 court days before the continued hearing date and not to exceed ten pages, including: (1) attaching a copy of Defendant's supplemental responses, if any; and (2) a concise description of any remaining dispute including identification of the specific interrogatories which remain in dispute. Defendant may file a responsive supplemental memorandum, not to exceed ten pages, addressing the disputed issues, no later than 5 court days before the continued hearing date.
7	25-01527585 Champion Tobacco Corporation vs. JTL Lux LLC	Motion to Quash Service of Summons Defendants' Motion to Quash Service of Summons and Complaint is GRANTED. Defendants JTL Lux, LLC; David Hsu; and Tina Lim specially appear and move under Code Civil Procedure section 418.10 for an order quashing service of summons and complaint for lack of personal jurisdiction. Section 418.10, subdivision (a)(1) provides that a defendant may serve and file a notice of motion "[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." Once a defendant files a motion to quash challenging jurisdiction, the burden is on the plaintiff to demonstrate by a preponderance of the evidence sufficient minimum contacts exist between the defendant and the forum state to justify imposition of personal jurisdiction. (<i>Mihlon v. Superior Court</i> (1985) 169 Cal.App.3d 703, 710; <i>Ziller Electronics Lab GmbH v. Superior Court</i> (1988) 206 Cal.App.3d 1222, 1232.) The evidence must be competent; unverified pleadings are insufficient (<i>Mihlon v. Superior Court, supra</i> at p. 710), as are hearsay declarations (<i>Floveyor Int'l, Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 796). California has the broadest kind of "long arm" statute, allowing California courts to "exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) Due process allows a state court to exercise personal jurisdiction over a nonresident defendant who has "minimum contacts" with the forum state: a relationship between the nonresident and the forum state which is such that the exercise of jurisdiction does not offend "traditional notions of fair play and substantial justice." (<i>International Shoe Co. v. Washington</i> (1945) 326 U.S. 310, 316.) Such personal jurisdiction may be general or specific. General jurisdiction arises when a defendant maintains "continuous and systematic" contacts with the forum state even when the cause of action has no relation to those contacts. (<i>Helicopteros Nacionales de Colombia, S.A. v. Hall</i> (1984) 466 U.S. 408, 415.) Even where general jurisdiction does not exist, a nonresident defendant may still be subject to specific jurisdiction if the controversy is related to or arises out of the defendant's contacts with the forum state. (<i>Ibid.</i>) Courts use a 3-part test to determine whether specific jurisdiction exists: (1) "defendant has purposefully availed himself or herself of forum benefits;" (2) "the controversy is related to or 'arises out of' a defendant's contacts with the

forum;” and (3) “[o]nce it has been decided that a defendant purposefully established minimum contacts within the forum State, these contacts may be considered in light of other factors to determine whether the assertion of personal jurisdiction would comport with ‘fair play and substantial justice.’” (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 446-447 [cleaned up].)

Here, Plaintiffs concede that general jurisdiction does not apply since their opposition is silent on this point. Instead, Plaintiffs argue specific jurisdiction exists based on the commercial transaction between the parties.

“Purposeful availment exists whenever the defendant purposefully and voluntarily directs its activities toward the forum state in an effort to obtain a benefit from that state.” (*Snowney v. Harrah’s Entertainment, Inc.* (2002) 35 Cal.4th 1054, 1067.) Whether the controversy “is related to or arises out of defendants’ contacts with California” is satisfied if there is a substantial nexus or connection between the defendants’ forum activities and the plaintiff’s claim.” (*Id.* at p. 1068.)

An individual’s contract with a nonresident *alone* does not automatically establish sufficient minimum contacts in the other party’s home forum. (*Burger King Corp. v. Rudzewicz* (1985) 471 U.S. 462, 478.) Rather, courts must consider the following factors: (1) prior negotiations; (2) contemplated future consequences; (3) terms of the contract; and (4) the parties’ actual course of dealings. (*Id.* at p. 479.)

Here, the evidence provided by both parties establishes plaintiff Champion Tobacco Corporation conducts business from California. Plaintiffs Detian Fang and Bihua Fang are California residents and principals of Champion. Defendant JTL Lux, LLC is a Texas limited liability company, and defendants David Hsu and Tina Lim are Texas residents who do not reside, do business, own property or maintain offices in California. In March 2024, plaintiff Fang communicated with Defendants regarding the purchase of acetate tow for Champion’s manufacturing operations. Defendant JTL Lux sent Plaintiffs a sample of the product and made representations about the product. On or about 3/15/24, the parties entered into a contract for the sale of \$205,200 worth of acetate tow, delivery to be arranged by Defendants to Cambodia. The negotiations and execution of the contract occurred remotely while Plaintiffs were in California and Defendants were in Texas.

An isolated transaction such as this does not establish specific jurisdiction. (See *Shisler v. Sanfer Sports Cars, Inc.* (2006) 146 Cal.App.4th 1254, 1258; *Luberski, Inc. v. Oleificio F.LLI Amato S.R.L.* (2009) 171 Cal.App.4th 409, 419.) Here, there is no evidence that Defendants directly advertised in California, intentionally targeted any California resident as potential buyers, or initiated the transaction with Plaintiffs; Defendants had no responsibility to deliver the goods to California but instead internationally to Cambodia; and Defendants had no further contact (besides the lawsuit) with Plaintiffs following the

		delivery of the goods to Cambodia. Merely negotiating remotely with Plaintiffs for a single sale of goods to be delivered to Cambodia does not establish Defendants purposefully availed themselves of the benefits of California. The motion is granted.
8	24-01397104 <i>Doyle vs. Waldorf Astoria Monarch Beach & Resort Club</i>	Motion for Summary Judgment and/or Adjudication OFF CALENDAR
12	24-01408634 <i>Gallegos vs. Kobus</i>	Motion to Be Relieved as Counsel of Record Counsel Theodore Hankin’s Motion to Be Relieved as Counsel is MOOT. Plaintiff Mark Gallegos and Hankin filed a substitution of attorney on 4/21/26 indicating that Hankin was being substituted out as counsel and Gallegos was representing himself.
15	22-01292736 <i>Martin vs. The Stag Bar, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant The Stag Bar, Inc.’s Motion for Summary Judgment is MOOT. This Court previously entered an order issuing terminating sanctions against Plaintiff. (ROA 372.) Thus, Defendant’s motion for summary judgment is moot.
16	22-01269208 <i>Moran vs. Torelli Realcorp</i>	1) Demurrer to Complaint 2) Motion to Compel Further Responses to Form Interrogatories 3) Motion to Compel Response to Requests for Admissions 4) Motion to Strike Portions Of Complaint <u>Demurrer</u> Defendant Michael Meyer’s Demurrer to the Frist Amended Complaint (FAC) is OVERRULED. Defendant is to file an answer within 20 days of this ruling. <u>1st Cause of Action – Disgorgement of Profits</u> “Except as provided in subdivision (e), a person who utilizes the services of an unlicensed contractor may bring an action in any court of competent jurisdiction in this state to recover all compensation paid to the unlicensed contractor for performance of any act or contract.” Plaintiff has sufficiently alleged a claim for disgorgement of profits under Business and Professions Code section 7031(b). Plaintiff alleges he paid Defendant for contracting work, which Defendant was unlicensed to perform. (FAC, ¶¶ 19-23.) Although the statute of limitations is 1 year, Defendant does not explain how the claim is untimely under the allegations of the FAC. (See <i>San</i>

Francisco CDC LLC v. Webcor Construction L.P. (2021) 62 Cal.App.5th 266, 278.)

Thus, the demurrer to the 1st cause of action is overruled.

2nd Cause of Action – Breach of the Implied Duty of Reasonable Care

“ ‘Accompanying every contract is a common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done, and a negligent failure to observe any of these conditions is a tort, as well as a breach of the contract.’ The rule which imposes this duty is of universal application as to all persons who by contract undertake professional or other business engagements requiring the exercise of care, skill and knowledge; the obligation is implied by law and need not be stated in the agreement [citation].” (*Roscoe Moss Co. v. Jenkins* (1942) 55 Cal.App.2d 369, 376.)

Plaintiff has sufficiently stated a claim for breach of the implied duty to perform the contract with reasonable care. Plaintiff alleges a contract (FAC, ¶ 29), Defendant failed to use reasonable care while performing pursuant to the contract (FAC, ¶ 31) and damages (FAC, ¶ 32). Defendant’s claim that Plaintiff must also claim a breach of contract is not supported by any legal authority. Thus, the demurrer to the 2nd cause of action is overruled.

Motion to Strike

Defendant Michael Meyer’s Motion to Strike the Frist Amended Complaint (FAC) is DENIED.

Defendant’s requests for judicial notice are GRANTED.

First, Defendant argues the DOE Amendment constitutes an amended complaint which prohibits Plaintiff from amending his complaint pursuant to Code of Civil Procedure Section 472 prior to the opposition deadline to a demurrer. However, amendments for substituting the name of fictitious doe defendants is separately addressed in Section 474 and Defendant cites to no authority which provides the sections are mutually exclusive. Additionally, Section 472 does not limit a plaintiff in the types of amendments permissible. (*Ryan G. v. Department of Transp.* (1986) 180 Cal.App.3d 1102, 1105.) Thus, Plaintiff’s amendment to add new parties and plead different causes of action is permissible.

Defendant also argues that Plaintiff waived his right to amend prior to the opposition date for a demurrer by opposing the demurrer. However, Section 472 does not contain such a limitation.

Finally, Defendant complains about service, however, Defendant offers no legal authority for striking a complaint based on service. (Cal. Rules of Court, rule 3.110(b) does not state it’s requirement to serve is a grounds for a motion to strike.). Thus, Defendant’s Motion is denied.

		<u>Discovery Motions</u> Plaintiff Gene Moran’s Motion to Compel Further Responses to Requests for Admission and Form Interrogatories are CONTINUED to [REDACTED]. “All discovery proceedings in the action shall be stayed upon the filing of a notice of motion made pursuant to this section. The stay of discovery shall remain in effect until notice of entry of the order ruling on the motion. The court, on noticed motion and for good cause shown, may order that specified discovery be conducted notwithstanding this subdivision.” (Code Civ. Proc., § 425.16(g).) No good cause has been shown to permit discovery prior to the ruling on the Anti-SLAPP motion currently scheduled for hearing on 11/12/26.
19	23-01343055 <i>Surdyk's Decorating vs. McAllister</i>	Motion to Reinstate Default Plaintiff’s request to reinstate default and default judgment against Douglas McAllister is CONTINUED to [REDACTED]. Plaintiff has informed the Court that the probate court continued the hearing to reopen the estate to December 9, 2026. Thus, this hearing shall be continued to allow for the probate court to complete its hearing regarding the reopening of the estate. Additionally, the Court orders the 3-year time limitation on serving a defendant, tolled (from 1/27/25 to present) for impossibility. (Code Civ. Proc., §§ 583.210(a), 583.420(d).)
20	25-01533027 <i>Zuniga vs. 4Gen Digital, Inc.</i>	Motion to Strike - Anti SLAPP Defendants 4Gen Digital, Inc., Craig M. Thomas, Jacqueline Thomas, and Alexandria C. Phillips’ Special Motion to Strike the Complaint (Anti-SLAPP) is GRANTED in part and DENIED in part. Defendants’ evidentiary objections Defendants object to certain portions of the Declaration of Gilberto Orozco Zuniga. Defendants’ objections are SUSTAINED. Plaintiff’s allegations Plaintiff Gilberto Orozco Zuniga filed a complaint against Defendants 4Gen Digital, Inc., Craig M. Thomas, Jacqueline Thomas, and Alexandria C. Phillips alleging the following causes of action in connection with his employment with Defendants: 1) Retaliation in Violation of FEHA Cal. Gov. Code § 12940(h); 2) Disability Discrimination Perceived Disability - FEHA Cal. Gov. Code § 12940(a);

- 3) Whistleblower Retaliation Cal. Lab. Code § 1102.5;
- 4) Wrongful Termination in Violation of Public Policy;
- 5) Aiding and Abetting FEHA Violations Cal. Gov. Code § 12940(i) (against Phillips); and
- 6) Intentional Infliction of Emotional Distress (against Jacqueline Thomas and 4Gen Digital Inc.)

Plaintiff alleges he was terminated in retaliation for whistleblowing fraudulent conduct.

Specifically, Plaintiff alleges that on 5/31/24, Plaintiff sent a text message to a coworker, Jennifer Visoso, raising concerns with potential customer overcharging. (Compl. ¶ 35A.) On 5/31/24, eight hours after the text message to Visoso, Plaintiff sent a text message to Steve Orosco, a coworker with whom Plaintiff alleges maintained a friendly, joking relationship, stating, “Do not worry sweetie, I don’t have any AK-47 or grenade, and even if I could have it . . . You think I will ruin my future slapping scumbags in my workplace? Aww poor little things [winking emoji].” (Compl. ¶ 39, Ex. H.)

Plaintiff alleges Orosco did not report the text right away but reported the text to J. Thomas on 6/4/24 only after his wife showed him allegedly inappropriate texts she had received from Plaintiff, creating a martial dispute. (Compl. ¶ 42.)

On 6/5/24, J. Thomas filed a police report with the Costa Mesa Police Department regarding the 5/31/24 text message. (Compl. ¶ 48.) Plaintiff alleges the report contained multiple false statement designed to portray Plaintiff as mentally unstable and dangerous. (Compl. ¶ 47.)

Plaintiff was terminated the same day J. Thomas filed the police report. (Compl. ¶ 66.) On the same day, Phillips, Defendants’ attorney, sent Plaintiff a cease and desist letter demanding Plaintiff “immediately CEASE & DESIST from contacting, in anyway, the officers, employees, vendors or associates of 4GenDigital.” (Compl. ¶ 69.) Plaintiff alleges the language referencing vendors and associates was designed to prevent Plaintiff from reporting fraud. (Compl. ¶ 72.)

Following Plaintiff’s termination, Defendants contested his unemployment benefits and an evidentiary hearing before the California Unemployment Insurance Appeals Board was held on 12/13/24. (Compl. ¶¶ 5, 53.) Plaintiff contends Defendants’ sworn testimony contained material contradictions that prove pretext and consciousness of wrongdoing. (Compl. ¶¶ 5, 12, 53, 60, 76, 111.)

Legal standard

“A cause of action against a person arising from any act of that person in furtherance of the person’s right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim.” (Code Civ. Proc., § 425.16, subd. (b)(1).)

“Litigation of an anti-SLAPP motion involves a two-step process. First, ‘the moving defendant bears the burden of establishing that the challenged allegations or claims ‘aris[e] from’ protected activity in which the defendant has engaged.’ Second, for each claim that does arise from protected activity, the plaintiff must show the claim has “at least ‘minimal merit.’ If the plaintiff cannot make this showing, the court will strike the claim.” (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1009 [cleaned up].)

Protected activity

Section 425.16, subdivision (e) defines protected activity to include: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.”

“At this first step, courts are to ‘consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability.’” (*Bonni, supra*, 11 Cal.5th at p. 1009 [citation omitted].) The defendant’s burden is to identify what acts each challenged claim rests on and to show how those acts are protected under a statutorily defined category of protected activity. (*Ibid.* [citation omitted].)

“Analysis of an anti-SLAPP motion is not confined to evaluating whether an entire cause of action, as pleaded by the plaintiff, arises from protected activity or has merit. Instead, courts should analyze each claim for relief — each act or set of acts supplying a basis for relief, of which there may be several in a single pleaded cause of action — to determine whether the acts are protected and, if so, whether the claim they give rise to has the requisite degree of merit to survive the motion.” (*Id.* at p. 1010 [citation omitted].)

As such, where the motion is aimed at an entire cause of action, the court does not consider whether the gravamen of the entire cause of action was based on protected or unprotected activity, but rather whether a plaintiff’s various allegations supply the elements of a claim or merely provide context. (*Id.* at pp. 1011-1012.) It is then the defendants’ burden to show each allegation supporting plaintiff’s claim of recovery is one that rests on protected activity. If the defendants carry that burden, the plaintiff will then need to demonstrate some merit to his claim that those protected acts were taken for impermissible retaliatory reasons; if he cannot, those particular allegations will be stricken. Conversely, to the

extent any acts are unprotected, the claims based on those acts will survive. (*Id.* at p. 1012.)

While Plaintiff relies on the rule in *Mann v. Quality Old Time Service, Inc.* (2004) 120 Cal.App.4th 90, “which thought an anti-SLAPP motion must defeat an entire cause of action where some factual allegations involved protected activity and some did not,” the *Mann* rule was disapproved of in *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 in favor of the analysis set forth above.

Defendants contend the first prong is satisfied as Plaintiff’s causes of action are based on the following protected activities:

- (1) The police report to law enforcement made on 6/5/24;
- (2) Attorney Phillips’ cease and desist letter; and
- (3) Sworn testimony made in administrative proceedings.

Police report

Making a report to the police may be considered arising from the right to petition the government and thus protected activity under anti-SLAPP. (*Chabek v. Monroy* (2007) 154 Cal.App.4th 1502, 1512.)

Defendants contend the police report falls within the litigation privilege of Civil Code section 47, subdivision (b).

“[A]lthough courts may use the litigation privilege ‘as an aid’ in determining whether a given communication arises out of protected activity, the litigation privilege and anti-SLAPP statute serve different purposes and are not necessarily coextensive.” (*RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co.* (2020) 56 Cal.App.5th 413, 428 [citations omitted].)

The Court finds the police report to be protected activity for purposes of prong one but addresses the issue of litigation privilege in its discussion of prong number two below.

Cease and desist letter

“[C]ommunications preparatory to or in anticipation of the bringing of an action or other official proceeding are within the protection of the litigation privilege of Civil Code section 47, subdivision (b) [citation], [and] such statements are equally entitled to the benefits of section 425.16.” (*Bailey v. Brewer* (2011) 197 Cal.App.4th 781, 789 [citation omitted].) “Accordingly, although litigation may not have commenced, if a statement ‘concern[s] the subject of the dispute’ and is made ‘in anticipation of litigation ‘contemplated in good faith and under serious consideration’ [citation] then the statement may be petitioning activity protected by section 425.16.’” (*Id.* at pp. 789-790 [citations omitted].) “Cases applying the litigation privilege have held that ‘if the statement is made with a good faith belief in a legally viable claim and in serious contemplation of litigation, then the statement is sufficiently connected

to litigation and will be protected by the litigation privilege.” (*Id.* at p. 790 [citation omitted; emphasis in original].)

Defendants contend, “[t]he Complaint confirms the letter was sent in response to workplace conflict arising from Plaintiff’s violent threat and to prevent further contact while legal issues were being evaluated, bringing it squarely within section Code of Civil Procedure section 425.16 (e)(2).” (Mtn. at 7:1-3.)

The cease and desist letter sent by Phillips states:

This firm has been retained by 4GenDigital. This letter is a formal demand that you immediately CEASE & DESIST from contacting, in anyway, the officers, employees, vendors or associates of 4GenDigital. Further, this letter is a formal demand that you immediately CEASE & DESIST sending Jennifer Visoso explicitly sexual text messages. Please confirm in writing that you have received and will comply with this demand to CEASE & DESIST. Please provide the above requested written confirmation via email no later than close of business Friday, June 7, 2024.

(Compl., Ex. N)

Plaintiff contends the purpose of the letter was “to prevent Plaintiff from reporting fraud to clients and vendors” as part of Phillips’ effort to protect her daughter, J. Thomas’, business by demanding Plaintiff cease all contact with anyone who could verify the fraud allegations. (Compl. ¶ 16C.) Conversely, Defendants provide no support for its conclusory statements the letter was sent in anticipation of litigation nor does the language in the letter itself suggest it was sent “in serious contemplation of litigation.”

As such, the Court does not find the cease and desist letter sent by Phillips to be protected activity for purposes of prong one.

Sworn testimony made in administrative proceedings

Section 425.16, subdivision (e)(2) defines protected activity to include any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law. Statements made during an evidentiary hearing before the California Unemployment Insurance Appeals Board are oral statements made before an “official proceeding authorized by law.”

The Court finds testimony made during this proceeding to be protected activity for purposes of prong one.

Termination decision reflected in the 6/5/24 termination letter

Defendants contend “[t]he termination is inseparable from the protected communications because it followed and was based upon the police report and attorney consultation” and is thus protected activity. (Mtn. at 7:11-12.)

“A claim is subject to the anti-SLAPP statute only if conduct constituting protected activity ‘*itself*’ is the wrong complained of.’ Thus, where a plaintiff’s claim is based upon ‘an action or decision’ of the defendant, it is not enough that some protected activity by the defendant *precedes* that action or decision, that some protected activity *is the means of communicating* that action or decision, or that some protected activity *constitutes evidence of* that action or decision. To fall under the anti-SLAPP statute, the challenged action or decision itself must *be* protected activity. Accordingly, where a plaintiff’s claim attacks only the defendant’s decision to undertake a particular act, and if that decision is not itself protected activity, that claim falls outside the ambit of the anti-SLAPP statute.” (*Mission Beverage Co. v. Pabst Brewing Co., LLC* (2017) 15 Cal.App.5th 686, 700-701 [cleaned up; emphasis in original].)

Accordingly, in *Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 897-898, the court found the employer’s termination constituted protected activity under the anti-SLAPP statute where it was, in and of itself, an act in furtherance of its speech and petitioning rights, specifically, its decision to enforce journalistic standards by terminating a writer for alleged plagiarism.

Here, while Defendants contend protected activity preceded the decision to terminate Plaintiff, Defendants have not demonstrated the termination, in and of itself, was an act in furtherance of Defendants’ speech and petitioning rights.

As such, the Court does not find the decision to terminate Plaintiff to be protected activity for purposes of prong one.

Whether Plaintiff’s claims arise from protected activity

Having determined the police report and testimony given at the evidentiary hearing before the California Unemployment Insurance Appeals Board are protected activity, the Court then considers whether Plaintiff’s causes of action arise from that protected activity.

As an initial matter, Plaintiff argues that prong one fails as “the gravamen of every cause of action in Plaintiff’s Complaint is the termination — not the communications.” (Mtn. at 5:1-2.)

As discussed above, however, the proper analysis for the court is to consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. (*Bonni, supra*, 11 Cal.5th 995 at p.1009 [citation omitted].)

“A claim arises from protected activity when that activity underlies or forms the basis for the claim. Critically, ‘the defendant’s act underlying the plaintiff’s cause of action must *itself* have been an act in furtherance of the right of petition or free speech.’ [T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute.’

Instead, the focus is on determining what ‘the defendant’s activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning.’ ‘The only means specified in section 425.16 by which a moving defendant can satisfy the [‘arising from’] requirement is to demonstrate that *the defendant’s conduct by which plaintiff claims to have been injured* falls within one of the four categories described in subdivision (e)’ In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those elements and consequently form the basis for liability. (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1062-1063 [cleaned up; emphasis in original].) In other words, “a claim may be struck only if the speech or petitioning activity *itself* is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Id.* at p. 1060 [emphasis in original].)

First cause of action for retaliation in violation of FEHA Cal. Gov. Code § 12940(h)

Government Code § 12940, subdivision (h) makes it unlawful for an employer to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under FEHA or because the person has filed a complaint, testified, or assisted in any proceeding under FEHA.

Plaintiff alleges he engaged in numerous protected activities under FEHA, including opposing disability discrimination, challenging discriminatory treatment, and documenting witness tampering. (Compl. ¶ 143.) Plaintiff alleges that as a result, Defendants subjected Plaintiff to numerous adverse employment actions, including, “[f]iling false police report with fabricated mental health allegations seeking criminal prosecution;” (Compl. ¶ 144.) Plaintiff further contends the “adverse action” of filing a false police report” followed Plaintiff’s participation in a protected activity thus establishing a prima facie case of retaliation. (Compl. ¶ 145.)

The Court finds Plaintiff relies on a protected activity, filing a police report, to establish an element of his FEHA retaliation claim, i.e., the adverse action.

As such, the Court finds Plaintiff’s first cause of action arises out of protected activity and satisfies the first prong.

Second cause of action for disability discrimination perceived disability - FEHA Cal. Gov. Code § 12940(a)

“The elements of a disparate treatment disability discrimination claim are that the plaintiff (1) suffered from a disability or was regarded as suffering from a disability, (2) could perform the essential duties of a job with or without reasonable accommodations, and (3) was subjected to an adverse employment action because of the disability or perceived

disability.” (*Zamora v. Security Industry Specialists, Inc.* (2021) 71 Cal.App.5th 1, 31 [citations omitted].)

Plaintiff alleges Defendants discriminated against him based on a perceived disability. Plaintiff alleges Defendants documented in a police report their perception that Plaintiff had a mental disability. (Compl. ¶ 151.) Plaintiff also alleges, “J. Thomas’s sworn testimony at the December 13, 2024 CUIAB hearing corroborates that her perception of Plaintiff as emotionally unstable was longstanding, not fabricated” (Compl. ¶ 154A.)

As discussed above, where a plaintiff’s claim is based upon an act or decision by the defendant, it is not enough that some protected activity is the means of communicating that action or decision, or that some protected activity constitutes evidence of that action or decision. (*Mission Beverage Co., supra*, 15 Cal.App.5th 686 at pp. 700-701.)

Here, while the police report and testimony were the means of communicating Defendants’ apparent perception of Plaintiff’s mental disability and constituted evidence of that perception, they are not themselves “the wrong complained of.” (*Mission Beverage Co., supra*, 15 Cal.App.5th at pp. 700-701.)

As such, the Court finds Plaintiff’s second cause of action does not arise out of protected activity and does not satisfy the first prong.

Third cause of action for whistleblower retaliation Cal. Lab. Code § 1102.5

“To establish a prima facie case of retaliation, a plaintiff must show that she engaged in protected activity, that she was thereafter subjected to adverse employment action by her employer, and there was a causal link between the two.” (*Bennett v. Rancho California Water Dist.* (2019) 35 Cal.App.5th 908, 921 [citation omitted].)

Plaintiff alleges he engaged in protected activity by disclosing to Visoso information Plaintiff reasonably believed evidenced fraud and unfair business practices. (Compl. ¶ 161.) Plaintiff alleges he was subject to adverse actions as a result of those disclosures including Defendants filing “a false police report with fabricated mental health allegations seeking Plaintiff’s criminal prosecution.” (Compl. ¶ 165.)

The Court finds Plaintiff relies on a protected activity, filing a police report, to establish an element of his whistleblower retaliation claim, i.e., the adverse action.

As such, the Court finds Plaintiff’s third cause of action arises out of protected activity and therefore satisfies the first prong.

Fourth cause of action for wrongful termination in violation of public policy

“The elements of a cause of action for wrongful discharge in violation of public policy are “(1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (*McDoniel v. Kavry Management, LLC* (2025) 114 Cal.App.5th 949, 962-963 [citation omitted].)

Plaintiff alleges Defendants terminated him in violation of various public policies, including against retaliation, discrimination, protecting whistleblowers, and against employers filing false police reports with fabricated allegations to retaliate against employees who engage in protected activities. (Compl. ¶ 173.)

As discussed above, where a plaintiff’s claim is based upon an act or decision by the defendant, it is not enough that some protected activity is the means of communicating that action or decision, or that some protected activity constitutes evidence of that action or decision. (*Mission Beverage Co., supra*, 15 Cal.App.5th 686 at pp. 700-701.)

Here, while the police report constituted evidence of Defendants’ motives for termination, the report is not itself “the wrong complained of.” (*Mission Beverage Co., supra*, 15 Cal.App.5th at pp. 700-701.)

As such, the Court finds Plaintiff’s fourth cause of action does not arise out of protected activity and does not satisfy the first prong.

Fifth cause of action for aiding and abetting FEHA Violations Cal. Gov. Code § 12940(i) (against Phillips)

Plaintiff alleges “Defendant Phillips, acting as external legal counsel to 4Gen, provided substantial assistance to Defendants’ perceived disability discrimination by engaging in conduct that went far beyond legal advice.” (Compl. ¶ 180.) This included having “Participated in providing law enforcement with false information that Plaintiff ‘took time off for mental health,’ ‘was taking medication,’ and ‘acted manic at work’—allegations Phillips knew or should have known were unsupported by any documentation in Plaintiff’s 23-year employment history;” (Compl. ¶ 180.)

While Plaintiff alleges Phillips was “present during the June 5, 2024 police report filing” (Compl. ¶ 12), the statements made to law enforcement that Plaintiff “took time off for mental health,” “was taking medication,” and “acted manic at work” were made by J. Thomas. (Compl. ¶¶ 66A, 66B.) Plaintiff does not allege any statements were made by Phillips herself to law enforcement.

Thus, Defendants have not demonstrated Phillips’ conduct, i.e., being present while J. Thomas made statements to law enforcement, constitutes protected activity.

As such, the Court finds Plaintiff’s fifth cause of action does not arise out of protected activity and does not satisfy the first prong.

Sixth cause of action for intentional infliction of emotional distress (against J. Thomas and 4Gen)

The elements of a cause of action for intentional infliction of emotional distress are as follows: “(1) defendant engaged in extreme and outrageous conduct (conduct so extreme as to exceed all bounds of decency in a civilized community) with the intent to cause, or with reckless disregard to the probability of causing, emotional distress; and (2) as a result, plaintiff suffered extreme or severe emotional distress.” (*Barry v. Frazier* (2023) 90 Cal.App.5th 1258, 1273 [citation omitted].)

Plaintiff alleges “Filing false police reports with fabricated mental health allegations while explicitly stating ‘desire for prosecution’ seeking Plaintiff’s arrest and imprisonment—not for legitimate workplace safety but to eliminate him as witness to fraud— constitutes the type of extraordinary conduct California courts have recognized as actionable intentional infliction of emotional distress.” (Compl. ¶ 186.)

Plaintiff further alleges Defendant 4Gen Digital Inc. is vicariously liable for all conduct of Defendant J. Thomas, who acted as CEO and managing agent with full authority over personnel decisions and corporate strategy. (Compl. ¶ 187.)

Thus, the Court finds Plaintiff relies on a protected activity, filing a police report, to establish an element of his whistleblower retaliation claim, i.e., the allegedly extreme and outrageous conduct.

As such, the Court finds Plaintiff’s sixth cause of action arises out of protected activity and satisfies the first prong.

In summary, Defendants have met their burden of establishing the first, third, and sixth causes of action arise from protected activity, i.e., filing the police report.

Whether Plaintiff’s claims have “minimal merit”

If the defendant has met its burden under the first prong, “the plaintiff will then need to demonstrate some merit to his claim that those protected acts were taken for impermissible retaliatory reasons; if he cannot, those particular allegations will be stricken. Conversely, to the extent any acts are unprotected, the claims based on those acts will survive. (*Bonni, supra*, 11 Cal.5th at p. 1012.)

“To show a probability of prevailing, the opposing party must demonstrate the claim is legally sufficient and supported by a sufficient prima facie showing of evidence to sustain a favorable judgment if the evidence it has submitted is credited.” (*Mitchell v. Twin Galaxies, LLC* (2021) 70 Cal.App.5th 207, 217 [citation omitted].) “In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant; though the court does not *weigh* the credibility or comparative probative

strength of competing evidence, it should grant the motion if, as a matter of law, the defendant's evidence supporting the motion defeats the plaintiff's attempt to establish evidentiary support for the claim. [The court] accept[s] as true the evidence favorable to the plaintiff. A plaintiff must establish only that the challenged claims have minimal merit to defeat an anti-SLAPP motion. (*Id.* at pp. 217–18 [cleaned up; emphasis in original].)

As set forth above, the Court has determined Defendants have met their burden with respect to the allegations regarding the police report in connection with the first, third, and sixth causes of action.

Defendants contend Plaintiff's claims are barred as the police report falls within the litigation privilege.

Litigation privilege

Civil Code section 47 provides, in part: "A privileged publication or broadcast is one made: . . . (b) In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1 of Part 3 of the Code of Civil Procedure, except as follows:" (Civ. Code, § 47, subd. (b).)

"[T]he weight of authority in California . . . holds that reports made by citizens to police regarding potential criminal activity fall within the section 47 absolute privilege." (*Hunsucker v. Sunnyvale Hilton Inn* (1994) 23 Cal.App.4th 1498, 1502-1503 [citations omitted].)

Plaintiff contends the litigation privilege does not apply based on Civil Code section 47, subdivision (b)(5), which provides "[t]his subdivision does not make privileged any communication between a person and a law enforcement agency in which the person makes a false report that another person has committed, or is in the act of committing, a criminal act or is engaged in an activity requiring law enforcement intervention, knowing that the report is false, or with reckless disregard for the truth or falsity of the report." Plaintiff further contends the filing of a knowingly false police report is a criminal act under Penal Code section 148.5, which forfeits anti-SLAPP protection.

Plaintiff contends Defendants' reckless disregard for the truth when filing the police report is evidenced by the following:

- Defense counsel removed the winking emoji from their quotation of the operative text message.
- J. Thomas told police Plaintiff had taken time off for mental health treatment, was taking psychiatric medication, and acted manic at work while 23 years of employment records do not contain any documentation of any of these allegations.
- J. Thomas did not raise mental health treatment, medication, or manic behavior during her testimony on 12/13/24 (though conceding she was not asked).

- J. Thomas stated she “desired prosecution” of Plaintiff, which demonstrates it was not a good-faith safety report.

“[S]ection 425.16 does not apply to activity that is not in furtherance of the constitutional rights of free speech or petition and this would necessarily include illegal activity that falls outside protected speech and petition rights.” (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 324 [citation omitted].) Thus, the court in *Flatley* found the communications at issue were not protected activity where they “constitute[d] criminal extortion as a matter of law.” (39 Cal.4th at p. 330.) The court concluded “that where a defendant brings a motion to strike under section 425.16 based on a claim that the plaintiff’s action arises from activity by the defendant in furtherance of the defendant’s exercise of protected speech or petition rights, but either the defendant concedes, or the evidence conclusively establishes, that the assertedly protected speech or petition activity was illegal as a matter of law, the defendant is precluded from using the anti-SLAPP statute to strike the plaintiff’s action.” (*Id.* at p. 320.)

Similarly, in *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696, 705-706, the court found the filing of a criminal complaint was not protected activity for purposes of anti-SLAPP where the wife did not contest she submitted an illegal, false criminal report.

Here, Plaintiff’s evidence does not conclusively establish the police report was illegal as a matter of law. Nor do Defendants concede the report was false or illegal. Defendants note, for example, the report included facts favorable to Plaintiff and that J. Thomas’ testimony at the administrative hearing is consistent with the report.

“[W]hen allegations of making false reports are controverted, they are insufficient to render that alleged conduct unlawful as a matter of law and outside the protection of section 425.16. (*Kenne v. Stennis* (2014) 230 Cal.App.4th 953, 967 [citation omitted].)

Given the application of the litigation privilege, the Court finds Plaintiff has not met his burden to establish that the challenged claims in the first, third, and sixth causes of action with respect to the police report have at least “minimal merit.”

As such, those particular allegations are stricken, while the causes of action based on unprotected acts survive. (*Bonni, supra*, 11 Cal.5th at p. 1012.)

Attorney’s fees and costs

Code of Civil Procedure section 425.16, subdivision (c)(1) provides, “a prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.”

Defendants request the Court set a briefing schedule and hearing for their fee motion. To the extent Defendants seek to recover fees through a

		subsequent motion, Defendants may do so by way of a properly noticed motion. Plaintiff also requests costs and reasonable attorney's fees under Code of Civil Procedure section 425.16, subdivision (c)(1) and section 128.5. Section 425.16, subdivision (c)(1) provides, "If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5. Given the Court's ruling on the motion, it does not find the motion to be frivolous or solely intended to cause unnecessary delay. Nor does the Court find Plaintiff, acting in pro per, has incurred "attorney's fees." The Court DENIES Plaintiff's request for attorney's fees and costs pursuant to Code of Civil Procedure section 425.16, subdivision (c)(1). In summary, the Court GRANTS, in part, Defendants 4Gen Digital, Inc., Craig M. Thomas, Jacqueline Thomas, and Alexandria C. Phillips's Special Motion to Strike the Complaint (Anti-SLAPP) as to the allegations in the first, third, and sixth causes of action with respect to the police report filed by Defendants on 6/5/24 and DENIES the Motion as to the remaining allegations.
22	24-01382884 <i>Ortega vs. FCA US, LLC</i>	Motion to Compel Production Plaintiff Sandra Ortega's motion to compel defendant FCA US LLC to provide responses, without objections, to Plaintiff's Request for Production of Documents, Set One, is MOOT. On May 14, 2024, Plaintiff served Requests for Production of Documents, Set One ("RFPs") on FCA. (Rucker Decl., ¶ 4, Ex. 1.) Defendant served verified responses to Plaintiff's Request for Production of Documents on February 25, 2026 and document production on March 3, 2026. (Hugret Decl., ¶ 6.) The Motion is therefore MOOT. Plaintiff's request for sanctions is DENIED. Moving party to give notice.